

The United Kingdom of Great Britain and Northern Ireland is a longstanding constitutional monarchy with a democratic, parliamentary government. Some central government powers have been devolved to locally elected bodies in Wales, Scotland, and Northern Ireland. In Northern Ireland, the 1998 Good Friday Agreement established local government institutions, including a legislative assembly and a power-sharing executive. The judiciary is independent.

Civilian officials maintained effective control of the police forces. In Great Britain, regional police forces were responsible for maintaining law and order; in Northern Ireland, the Police Service of Northern Ireland (PSNI) was responsible for maintaining law and order. In some areas of Northern Ireland, because of the continuing threat of violence, army units operated to reinforce the PSNI. There were approximately 14,000 British troops stationed in Northern Ireland, among the lowest number since the early 1970's. There were some complaints that individual members of the police committed some human rights abuses.

A highly developed, diversified, market-based economy with extensive social welfare services provides most of the country's 58.8 million residents with a high standard of living.

The Government generally respected the human rights of its citizens; although there were some problems, the law and judiciary provided effective means of dealing with individual instances of abuse. There were some complaints that individual members of the police and military occasionally abused detainees and some other persons. Prison conditions remained a problem, including instances of mistreatment by prison officials and overcrowding.

There were occasional cases of societal violence and discrimination against women, ethnic minorities and asylum seekers, which the Government continued to combat. Trafficking in persons remained a problem, which the Government took steps to address. The United Kingdom was invited by the Community of Democracies' (CD) Convening Group to attend the November 2002 second CD Ministerial Meeting in Seoul, Republic of Korea, as a participant.

Although many paramilitary organizations in Northern Ireland continued to maintain a cease-fire in accordance with the Good Friday Agreement, punishment attacks have continued to occur in areas under the influence of these groups, and some dissident groups committed acts of violence, including killings, aimed at disrupting the peace process.

On October 14, the Northern Ireland Assembly and Executive were suspended and the Government temporarily re-instituted direct rule headed by the Secretary of State for Northern Ireland and four ministers. The Government reiterated its commitment to the Good Friday Agreement and continued to work towards its implementation, including reestablishment of the Assembly and Executive in Northern Ireland.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports of political killings by the Government or its agents.

According to the Annual Report of the Police Complaints Authority (PCA), there were 36 deaths in police care or custody during the 12 months ending in March, compared

with 32 in 2000-2001. The PCA reported that 10 of the deaths occurred because of natural causes, 20 were due to alcohol or drugs, 4 were suicides, and 2 due to other causes, specifically persons who fell from a window. The Home Office and the Police Complaints Authority have initiated a range of actions aimed to eliminate such deaths, including safer custody facilities, improved training, CCTV monitoring, piloting new technologies, and emphasis on better care, assessment and monitoring of detainees.

In May three detectives faced disciplinary action over their investigation into the 1999 death of Roger Sylvester. In 2000 the Crown Prosecution Service (CPS) ruled that there was insufficient evidence for a criminal trial; however, a coroner's inquest is scheduled to begin in 2003.

On June 21, the jury of the coroner's inquest returned an open verdict to the 1999 police shooting of Harry Stanley after the CPS ruled in 2000 that there was insufficient evidence for a criminal trial. The family's appeal of the verdict was ongoing at year's end.

There also were a number of deaths in prison due to suicide and natural causes (see Section 1.c.). The inquest into the 1996 death while in prison of Jim McDonnell remained ongoing at year's end.

In May the UK and Irish Governments appointed the Honorable Judge Peter Cory to "establish the facts and report with further recommendations" regarding allegations of past state involvement, collusion or culpability in six Northern Ireland and Republic of Ireland cases of killings of: Pat Finucane in 1989, Billy Wright in 1997, Robert Hamill in 1997, Rosemary Nelson, Lord Justice and Lady Gibson in 1987, and police officers Harry Breen and Bob Buchanan in 1989. The Government pledged to conduct a public inquiry into any of these cases if so recommended by the judge.

Hearings continued in the judicial inquiry into the events in Northern Ireland on January 30, 1972--"Bloody

Sunday"--when 13 unarmed civil rights demonstrators in Londonderry were killed by British soldiers but for which no member of the security forces were held accountable.

The NGO British Irish Rights Watch reported that paramilitary groups were believed to be responsible for at least 13 killings in Northern Ireland.

In January police charged Colm Murphy with aiding and abetting the 1998 bombing in Omagh. He was serving a 14-year jail sentence after being found guilty of conspiring to cause an explosion. In July five men, including Colm Murphy, were served with civil writs for compensation by some of the Omagh victims. In August some of the Omagh victims initiated actions for compensation against the Secretary of State for Northern Ireland and the PSNI for failing to prevent the bombing. Family members of the victims criticized Sinn Fein, a legal political party linked with the IRA, for refusing to assist in the police investigation; they were pursuing a civil suit against the RIRA at year's end.

b. Disappearance

There were no reports of politically motivated disappearances.

The British and Irish governments in 1999 jointly established the Commission for the Location of Victims' Remains to locate the remains of nine victims of IRA paramilitary violence from the 1970s. It located the remains of three persons in 1999, suspended its work in 2000 pending the receipt of additional information from the IRA, and resumed the search for the body of Charles Armstrong in May. This search was abandoned 3 weeks later due to the exhaustion of available information. No more bodies have been found.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were complaints that individual members of the police and army occasionally abused detainees. Human rights organizations maintain that such abuse, while not widespread, was a matter of serious concern (see Section 1.a.).

Detainees who claim physical mistreatment have the right to an immediate medical examination. A trial judge must examine such a claim. Confessions obtained by abusive treatment are not admissible in court, and judges can exclude even voluntary confessions.

The Independent Assessor of Military Complaints coordinates investigations into complaints of abuses committed by the Army in Northern Ireland. Its June 19 report cited a 21.5 percent drop from the previous year in the number of complaints received.

Human rights groups continued to call for an end to the use of plastic bullets, which were used by the police and military in Northern Ireland to quell civil disturbances. The police have introduced safeguards on the use of plastic bullets and the Police Ombudsman reviewed every instance when the police fired a plastic bullet. Between April 2001 and March, the Police Ombudsman produced seven reports on incidents relating to the discharge of plastic bullets by police officers. In each incident, investigators concluded that the discharge was justified and proportionate. The firing by soldiers acting in support of the police did not come under the Ombudsman's jurisdiction. No deaths occurred as a result of plastic bullets.

Reports by official bodies and NGOs have suggested that the public lacked confidence in existing procedures for making complaints against the police, with more complainants taking their cases directly to the civil courts. There were 7,148 complaints filed with the PCA from April 2001 through March, 732 fewer complaints than filed in

the previous period. Almost one-quarter of the cases reviewed by the PCA between April 2001 and March resulted in some form of disciplinary or legal action.

In June the Government passed the Police Reform Act, which among other things replaces the PCA with the Independent Police Complaints Commission (IPCC). The legislation grants the IPCC its own body of investigators with the powers to investigate matters of police misconduct completely separately from the police. The IPCC allows for greater involvement of the complainant in the investigation; greater openness in disclosing materials to the complainant; more effective powers to direct that disciplinary charges be laid against police officers; and greater independence of the person carrying out the IPCC investigation. All deaths in police custody will be referred to the IPCC. The Act also provides for a National Policing Plan to set priorities for policing and measures to ensure the most effective methods are used by all police forces.

The armed forces have a procedure to handle complaints of harassment, racial and otherwise. Service personnel also have the right to submit complaints to employment tribunals. In 1998 the services entered into a 5-year partnership agreement with the Commission on Racial Equality (CRE) to promote racial equality practices. On September 16, the Crown Prosecution Service entered into a partnership with the CRE designed to assist in its continued progress towards the elimination of racial discrimination.

The Police Ombudsman for Northern Ireland, who has an independent staff, has extensive powers to investigate complaints in Northern Ireland filed against the police or referred by the PSNI chief constable, the Police Authority of Northern Ireland, or the Secretary of State for Northern Ireland. The Ombudsman is required to investigate cases involving death or serious injury where there may have been police involvement and may investigate all other

cases of complaints against the police. The Ombudsman may recommend to the Director of Public Prosecutions (DPP) that charges be brought against officers, although the final decision rests with the DPP. The Ombudsman can direct the Chief Constable to take disciplinary action against police officers.

Between November 2000 and March 31, the Ombudsman received 6,341 complaints, approximately two-thirds of which concerned oppressive behavior or incivility by the police. As of March 31, 1,794 cases were resolved, 64 of which resulted in disciplinary action or criminal charges.

Parliament enacted legislation implementing the 1999 Patten Report on Policing in Northern Ireland in November 2000. The law imposed hiring quotas to increase Catholic representation in the PSNI and introduced new human rights standards and wider use of community policing practices. Respect for human rights is part of the appraisal process for staff evaluation. In September Hugh Orde was appointed the new Chief Constable of the PSNI. A cross-community Policing Board, with a majority elected membership, holds the Chief Constable and police service accountable. Sinn Fein has refused to participate and has declined to encourage Catholics to join the police, as called for in the Patten Report. In May and September reports, the Oversight Commissioner charged with reviewing the Patten reforms criticized the delay in integrating Special Branch and Crime Branch and the lack of progress in establishing District Policing Partnerships and a new police training college. The Commissioner also noted areas of progress, including the March release of the first Policing Plan by the Policing Board, the January endorsement by the Police Board of the Police Service's strategic plan for community policing, the progress of the Police Service's Analysis Center, and the April 5 signing of the Inter-Governmental Agreement by the British and Irish Governments.

Both loyalist and republican paramilitary groups in Northern Ireland continued to intimidate or carry out "punishment" attacks on individuals who lived in areas under paramilitary influence. The attackers have used iron pipes, baseball bats, sledgehammers, and spiked clubs to beat their victims or shot them in the knees and legs. The attacks often were intended to maintain or extend the control of paramilitary groups in a given region. The Northern Ireland Human Rights Commission reported that between April 2001 and March 2002, there were 302 "punishment" attacks, compared with 323 in the previous year. Of these, 190 were paramilitary-style shootings and 112 were beatings, with loyalists suspected of responsibility in nearly two-thirds of the cases. Human rights groups stated that available statistics underreported the true number of casualties because many of the individuals were too intimidated to report paramilitary punishment attacks.

On September 29, Danny McBrearty was bludgeoned and shot three times in Londonderry/Derry, which police have attributed to the PIRA (see Section 2.d.). On October 15, police arrested a person in connection with the shooting.

Immigrants and asylum seekers were subject to some societal violence and attacks during the year (see Section 5).

Prison conditions generally met international standards; however, instances of mistreatment by prison officials, overcrowding, and suicides occurred. A September 17 report by the Prison Reform Trust warned that prisons in England and Wales suffered from an overcrowding crisis which threatened prison safety, leading to prisoners being held in inhumane and degrading conditions. The Prison Service attempted to correct the problems of overcrowding and poor facilities by providing funding for 2,320 new places. The prison population in England and Wales increased slightly over the previous year from 66,049 inmates to 72,660.

On October 23, approximately 150 inmates at Lincoln Prison rioted for 8 hours, set a wing of the prison on fire, and destroyed approximately 200 bed spaces. A group of prisoners attacked a guard, stole his keys and released fellow inmates from their cells to set off the riot. Hundreds of inmates were subsequently transferred to other prisons due to the lost space. The Prison Officers' Association stated that severe overcrowding and insufficient staffing levels had caused friction at the prison.

On March 27, an appeals court ruled that a public inquiry into the racially motivated killing of Zahid Mubarek while in prison in 2000 was not warranted. Since the cause of death had been established by the conviction of cellmate Robin Stewart for the murder, the court stated that there was no basis for prosecuting any member of the prison service.

In June Amnesty International (AI) reported authorities were not sufficiently protecting the human rights of incarcerated minors with respect to inter-prisoner violence, suicides, investigations into deaths in prison, abuse, segregation, and prison conditions and called for a public inquiry to examine these issues.

On March 14, the European Court of Human Rights ruled that the Government had breached the European Convention on Human Rights on four counts relating to the 1994 death of Christopher Edwards who was beaten to death by his cellmate; both were diagnosed as mentally ill. On May 28, the Court concluded that the Government had violated Dermot McShane's right to life as a result of its failure to ensure an effective investigation into his 1996 death in Londonderry/Derry.

On August 28, the Howard League for Penal Reform stated that 64 percent of jails were overcrowded. In February the new Chief Inspector of Prisons reported on abusive conditions in Dartmoor prison, where inspectors said

nearly a quarter of the 700 inmates reported being verbally abused by staff.

The Howard League for Penal Reform reported that 94 persons committed suicide in prisons in England and Wales, an increase of 29 percent from 2001. In June Mark Fulton, a key suspect in the murder of lawyer Rosemary Nelson, was found strangled by his own belt in his cell.

Human rights groups have been particularly critical of Special Security Units (SSUs), which were used to hold prisoners deemed to pose an exceptional risk of escape. Human rights monitors have criticized small group isolation; the lack of adequate exercise, work, educational opportunities, and natural daylight; and the strict enforcement of noncontact visits through a glass barrier. At year's end, there was only one SSU in operation, holding a small number of prisoners. Prisoners held in the SSU were provided with all the facilities required under Prison Rules, although those facilities were delivered within the Unit and not in the main part of the prison. The SSU was also subject to independent inspection by HM Chief Inspector of Prisons.

The number of female prisoners continued to rise. Implementing the recommendations of a 1999 report by its women's policy group, the Prison Service adopted new procedures governing admission to mother and baby units and standards for their management. There were four Mother and Baby units in England, which provided 64 places for mothers to keep their children with them while in prison.

After April 30, the Government stopped the routine use of prisons to hold immigration detainees. People held solely under immigration legislation were accommodated in Immigration Service Removal Centers under Detention Center rules, unless they had completed a sentence of 12 months or more in a British prison or were held for reasons of security and control.

In the prison system, women were held separately from men, juveniles from adults, and pretrial detainees from convicted prisoners.

Separate and distinct prison regimes exist for Northern Ireland and Scotland, administered through the Northern Ireland Office and the Scottish Office, respectively. The Government permitted independent human rights observers to visit prisons and immigration detention centers. An April report by the Council of Europe's Committee for the Prevention of Torture (CPT) found during its February 2001 visit that the three basic safeguards against ill-treatment of persons detained by the police advocated by the CPT on the whole operated in a satisfactory manner. The report also found that conditions of detention continued to be satisfactory in police stations in the London region, but recommended that authorities review these conditions in Wales.

NGOs reported complaints from prisoners in Maghaberry jail concerning their personal safety. Prisoners reported death threats and assaults by members of opposing factions. NGOs called for greater provisions to protect the prisoners.

d. Arbitrary Arrest, Detention, or Exile

The law prohibits arbitrary arrest or detention, and the Government generally observed these prohibitions; however, arrests may be made without judicial warrants, particularly in Northern Ireland, when police have reasonable cause to suspect wrongdoing, and antiterrorism legislation gives authorities broad powers of arrest, detention, and interrogation.

The law allows police officers to stop and search vehicles and pedestrians if a police officer of at least superintendent rank (or a chief inspector if no superintendent is available) "reasonably believes" it is expedient to do so to prevent acts of violence. The authorization is limited to a 24-hour period but is

renewable under certain circumstances. Under the law, suspects arrested without warrants must be released within 24 hours (or 36 hours if a serious offense is involved) unless brought before a magistrates' court or arrested under Terrorism Act provisions. The court may authorize the extension of detention by 36 hours and on further application by another 24 hours.

The 2000 Terrorism Act entered into force in February 2001. The act widens the definition of terrorism and reforms mechanisms and powers that deal with terrorism relating to Northern Ireland and extends them to all forms of domestic and foreign terrorism in the United Kingdom. It also provides for special emergency powers applicable to Northern Ireland for a period of up to 5 years. These powers include special entry, arrest, search, and seizure authority without a warrant under certain circumstances.

In December 2001, the Anti-Terrorism, Crime, and Security bill became law. The act includes measures to cut off terrorist access to funds, to ensure better information sharing between agencies, enhance police investigative powers, tighten security in relation to aviation, civil nuclear sites and laboratories, prevent terrorists abusing immigration and asylum laws, and enable swift action to implement European Union (EU)-agreed anti-terrorism measures.

The act allows for extended detention of those immigrants and asylum seekers suspected of being terrorists, but who cannot be removed from the country immediately. Human rights groups, including AI, object to provisions of these laws, arguing that they reverse the burden of proof and provide inadequate safeguards against abuse by law enforcement officials. They focus on the broad definition of terrorism employed in the law, the proscriptive powers of the state, and the powers of arrest, detention, and interrogation. The Special Immigration Appeals Commission ruled that these detention powers were

unlawful and violated the Government's obligation under the European Convention of Human Rights. The Government appealed the ruling and in October, the Court of Appeals ruled in favor of the Government, stating that the detention powers did comply with the European Convention on Human Rights.

Defendants awaiting trial have a statutory right to bail except when there is a risk that they would flee, commit another offense, or in other limited circumstances. Defendants who are remanded into custody are covered by statutory custody time limits, which restrict the period for which they can be held while awaiting trial to a maximum of 16 weeks, unless the court grants an extension.

The law gives administrative detention power to immigration officers. There is no time limit to such detention, but detainees have the right to request a judicial review or an application for habeas corpus. As of June 29, approximately 1,335 asylum seekers were in reception or removal centers and 105 were in prison establishments where they were held separately from convicted prisoners and those awaiting trial (see Sections 1.c. and 2.d.). The Government provides all immigration detainees with written notice specifying the reasons for their detention at the time they are detained and provides detainees with automatic monthly updates on their case. The law permits all detainees to apply to immigration appellate authorities for bail. There were no set levels of surety for bail, and surety is not required in every case. In February the Home Office issued the "Secure Borders, Safe Haven" White Paper and, on November 7, the Nationality, Immigration, and Asylum Act was passed. The Act reformed the asylum system by establishing a system of induction, accommodation, and removal centers to expedite the process and reduce abuses. On October 4, the NGO Asylum Coalition condemned the bill for its plans to educated asylum-seeking children in accommodation centers rather than in local schools.

While there is no law prohibiting forced exile, the Government did not employ it.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, and the Government generally respected this provision in practice. There are several levels of courts. Most criminal cases are heard by magistrates' courts, which are managed by locally based committees. Their decisions may be appealed to the Crown Courts, which also hear criminal cases requiring a jury trial, or to the High Courts. Crown Court convictions may be appealed to the Court of Appeal, which may in turn refer cases involving points of law to the House of Lords. The Appellate Committee of the House of Lords (which consists of senior judges and was functionally distinct from the legislative arm) is the final court of appeal. The Criminal Cases Review Commission operates as an additional appellate body in England, Wales, and Northern Ireland. It considers cases after the judicial appeals process are exhausted and where there is significant new evidence that casts doubt on the conviction. In Scotland similar appeals may be made to the Scottish Office.

The law provides for the right to a fair trial, and an independent judiciary generally enforced this right. Defendants enjoy a presumption of innocence until proven guilty, the right to question witnesses against them, and the right of appeal to successively higher courts. Indigent defendants have the right to free counsel of their choice, with some exceptions. UNHCR reported that the right of asylum seekers to free legal advice was severely limited by a shortage of competent legal advice in the regions and of funding for such advice elsewhere.

Criminal proceedings must be held in public except those in juvenile court and those involving public decency or security. In a trial under the Official Secrets Act, the judge may order the court closed, but sentencing must be public.

The law empowers judges to instruct juries that they may draw an inference of guilt from a defendant's refusal to answer questions during interrogation or trial, although no conviction can be based solely on such an inference. Human rights groups and the U.N. Human Rights Committee have criticized this provision, which they considered an abrogation of the right against self-incrimination. A similar provision is in effect in Northern Ireland, but the law prohibits the drawing of an inference from silence when a suspect is questioned before being permitted access to an attorney. The European Court of Human Rights had ruled that, taken in isolation, drawing inferences from silence did not contravene the accused's right to a fair trial guaranteed by Article 6 of the European Convention on Human Rights and Fundamental Freedoms. However, the Court decided that the possibility of inferences being drawn from the silence of an accused while he was denied access to legal advice constituted a breach of the requirement for a fair trial under Article 6.

A small percentage of defendants faced lengthy pretrial detention (see Section 1.d.). The Crime and Disorder Act includes measures to reduce delays in criminal proceedings by introducing procedural reforms and further limiting the time allowed for the prosecution of cases.

The 1996 Criminal Procedures and Investigations Act reduced defense lawyers' access to potential evidence held by the prosecution, including information as to how the evidence was collected.

Under the 2000 Terrorism Act, the opinion of a senior police officer that an individual is a member of terrorist organization is admissible as evidence in criminal proceedings, but a person cannot be charged or convicted solely on this basis. The provision is a temporary measure for Northern Ireland, requires annual renewal, and has not been used to date (see Section 2.b.).

In Northern Ireland, trials for certain terrorist-related offenses are conducted automatically as "scheduled cases," also referred to as "Diplock cases," without a jury unless they specifically are "scheduled out" to ordinary jury courts. If judges decide to convict, they must justify the decision in a document that becomes part of the court record. An appellate court may overturn the decision on either factual or legal grounds. From January 1 through October 31, 75 persons were tried as "scheduled cases," of whom 32 either pled or were found guilty. A person convicted in a "scheduled case" has an automatic right of appeal. The Government's continued reliance on "scheduled cases" has been criticized widely by human rights groups. In July the Government repealed section 76 of the Terrorism Act, which meant that the standard for admissibility of confession in the "scheduled cases" is now the same as that in ordinary criminal courts.

The PSNI introduced a Police Order regulating the relationship between police officers and defense lawyers. The NGO British Irish Rights Watch stated that some NGOs had reported that threats against lawyers had ceased due to new interview procedures, but that in non-interview situations some lawyers continued to receive threats.

In response to the 2000 Northern Ireland Criminal Justice Review, the Government introduced draft legislation in December 2001 to implement the recommendations. Some NGOs criticized the Bill and implementation plan as weak, especially in relation to prosecutions and judicial appointments.

The Human Rights Act requires all public bodies to act in a manner compatible with the European Convention on Human Rights. The law provides citizens with the right to take alleged violations of the convention by a public authority into British courts.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, and the Government generally respected these prohibitions in practice. Warrants normally were required for a police search of private premises. A police officer may enter and search without a warrant "any premises if he or she reasonably suspects a terrorist is to be found there." The Government compensates persons whose houses or property are damaged during house searches. Police stop minorities for searches more often than whites (see Section 5).

Under the Regulation of Investigatory Powers Act (RIPA) the Government may monitor the content of private electronic communications after obtaining a warrant. Law enforcement agencies may require individuals and businesses to disclose encryption keys under certain circumstances. Businesses may monitor the electronic communications of employees.

Three NGOs, British Irish Rights Watch, Liberty, and Irish Council for Civil Liberties, took a case to the European Court of Human Rights, stating the Government had intercepted their telephone calls to clients in Ireland without a warrant.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press, and the Government generally respected these rights in practice. An independent press, an effective judiciary, and a functioning democratic political system combine to secure freedom of speech and of the press. Viewpoints critical of the Government were well represented.

Press organizations and human rights groups continued to criticize 1981 legislation that allows courts to order a journalist to disclose a source if it is deemed to be in the interests of justice and 1984 legislation that compels

journalists to give evidence in cases where police can prove it is necessary to their investigation. Journalists cited the Official Secrets Act as unduly restrictive by prohibiting the legal defense that the information provided by a source is already in the public domain or that its publication is in the public interest.

The print media was dominated by more than a dozen national daily and Sunday newspapers, all privately owned and independent (although often generally aligned with a political party). Approximately one-half of the electronic media was run by the BBC, which was funded by the Government but enjoyed editorial independence. Corporations under renewable government licenses operated the remainder.

The investigation into the 2001 drive-by shooting in Northern Ireland of journalist Martin O'Hagen continued at year's end.

The 2000 Freedom of Information Act (FIA) is scheduled to be implemented by November 2005. The FIA would provide the public with access to information held by the Government. Critics charge that the FIA exempts too much information from disclosure on the grounds that the public interest in withholding it outweighs the benefit of its disclosure.

The Government did not restrict Internet access. In May the Government launched a task force to combat pedophilia on the Internet (see Section 5).

The Government did not restrict academic freedom.

b. Freedom of Peaceful Assembly and Association

The law provides for the right of peaceful assembly; however, the Government may limit that right if it would impose a cost on public convenience.

In Northern Ireland, the annual "marching season" poses problems as local residents in some Catholic communities

perceive the parades as threatening and provocative. The Public Processions (Northern Ireland) Act grants responsibility for ruling on "contentious" marches to a Parades Commission. The Commission may not ban marches, only impose conditions on them, such as route restrictions. Of the 3,301 notified parades held between April 2001 and March 2002, 220 were considered contentious; the Parades Commission imposed restrictions on 152. Some parades by the "Loyal Institutions" (the Royal Black Preceptory, Orange Order, and Apprentice Boys), whose membership is almost exclusively Protestant, have been prevented from passing through nationalist areas because of public order concerns.

The law provides for freedom of association, and the Government generally respected this right in practice. However, under the 2000 Terrorism Act, it is an offense, punishable by up to 10 years' imprisonment, to belong to or profess to belong to a terrorist organization proscribed by the Home Secretary. Individuals also were subject to prosecution for supporting or inviting support for a proscribed terrorist organization, arranging or addressing meetings by proscribed organizations, or wearing clothing or carrying or displaying articles that would reasonably arouse suspicion of membership in a proscribed organization. The Act allows for the seizure and forfeiture of assets belonging to a person convicted of fundraising or otherwise assisting or supplying property to be used for the purposes of terrorism.

c. Freedom of Religion

The law provides for freedom of religion, and the Government generally respected this right in practice. The Government at all levels strives to protect this right in full and does not tolerate its abuse, either by governmental or private actors.

There were two established churches: The Church of England (Anglican) and the Church of Scotland

(Presbyterian). Other than in the House of Lords, membership in a given religious group does not confer a political or economic advantage.

The Government did not recognize Scientology as a religion for the purposes of charity law. Scientology ministers were not considered ministers of religion for the purpose of immigration relations or facilitating prison visits. However, prisoners were free to register their adherence to Scientology; this is reflected on their records.

The law requires religious education in publicly maintained schools throughout the country. The shape and content of religious instruction is decided on a local basis and must be nondenominational and refrain from attempting to convert pupils. All parents have the right to withdraw a child from religious education, but the schools must approve this request.

In addition, schools have to provide a daily act of collective worship. This requirement may be waived if a school's administration deems it inappropriate for some or all of the students. Under some circumstances, non-Christian worship may be allowed. Teachers' organizations have criticized school prayer and called for a government review of the practice.

While the majority of state-supported schools were Anglican or Catholic, there were a small number of Methodist, Muslim, and Jewish schools.

During the year, there were isolated attacks against Muslims. The Government condemned the violence, and "religiously aggravated offenses" is part of the Anti-Terrorism, Crime, and Security Act 2001.

According to the Community Security Trust, there were 350 anti-Semitic incidents reported, including at least 47 assaults. Public manifestations of anti-Semitism were confined largely to the political or religious fringes. At the end of April, suspected neo-Nazis desecrated a synagogue

in the Finsbury Park area of north London, leaving windows smashed, religious artifacts defaced, and crude swastikas painted everywhere; two senior Labor and Conservative politicians united "to condemn those who daubed swastikas and smashed windows in a north London synagogue."

The Human Rights Act prohibits discrimination on the basis of religion by public authorities. In Northern Ireland, the Fair Employment Act specifically bans employment discrimination on the grounds of religious beliefs. All public sector employers and all private firms with more than 10 workers must report annually to the Equality Commission on the religious composition of their work force and must review their employment practices every three years. Noncompliance may bring criminal penalties and the loss of government contracts. Unemployment in Northern Ireland registered 5.7 percent in November, continuing the relatively low level of unemployment since 1997. The Catholic unemployment rate was approximately 3 percentage points higher than the rate for Protestants, down from the approximately 9 percentage point difference in 1992. Victims of employment discrimination may sue for damages.

The 1998 Good Friday Agreement aimed to create a lasting settlement to the conflict in Northern Ireland and a society based on equality of opportunity and human rights. However, the fear of intercommunal violence has, over the years, led to a pattern of segregated communities in Northern Ireland. Many Protestant and Catholic families have moved away from mixed or border neighborhoods.

The police in Northern Ireland reported approximately 30 attacks against both Catholic and Protestant churches, schools, and meeting halls in 2001. Such sectarian violence often coincided with heightened tensions during the spring and summer marching season (see Section 2.b.).

Protests in the predominantly Protestant Glenbryn area of north Belfast against Catholic pupils of Holy Cross primary school continued sporadically. Protests also occurred in other interface areas dividing predominantly Protestant and predominantly Catholic areas in North Belfast and in Short Strand. Residents complained of curfews and uneven policing.

For a more detailed discussion see the 2002 International Religious Freedom Report.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights, and the Government generally respected them in practice. Citizens enjoyed freedom of movement within the country, foreign travel, emigration, and repatriation.

Paramilitary organizations in Northern Ireland continued to threaten individuals and families to compel them to leave the Province. In one such case, the family of Joseph McCloskey remained in exile in England after a PIRA death threat in 2001 (see Section 1.a.).

The law provides for the granting of asylum and refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government cooperated with the office of the UNHCR and other humanitarian organizations in assisting refugees. The law provides for first asylum.

Applicants may apply for asylum or refugee status upon arrival or after entering the country. The law permits all asylum seekers to remain temporarily in the country at least until immigration authorities consider their application and, if they are refused asylum, until their rights of appeal are exhausted. Some asylum seekers were detained while the Government reviewed their cases; the Government dispersed detainees throughout the country, in housing estates or government facilities (see Sections 1.c. and 1.d.).

From January to September, the Government acted on 125,625 initial asylum applications, granting asylum in 6,025 cases. The Government refused asylum in an additional 15,805 cases but granted those applicants "exceptional leave to remain." At the end of September, 37,200 asylum cases were outstanding. During the first quarter of the year, asylum statistics showed that initial decisions were being made more quickly and that the backlog had fallen to its lowest level in over a decade.

In 2000 the Government issued guidelines for use by the courts in considering asylum claims by women. Judges were urged to consider situations more likely to be faced by female asylum applicants, including female genital mutilation and trafficking (see Sections 5 and 6.f.).

The treatment of asylum seekers was the subject of considerable media attention and political debate during the year (see Section 1.d.). On August 6, police closed the forensic investigation into the February 14 fire and mass breakout at Yarl's Wood detention center. Police and archaeologists reported it was highly improbable that anyone had died in the fire as no human remains were found. Fourteen of the 40-plus detainees who escaped remained at large at year's end. The center remained closed, and 13 people were arrested and charged with violent disorder and arson. On August 28, Tayman Bahmani, an Iranian asylum seeker, was stabbed to death in Sunderland.

There were no reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens have the right to change their government peacefully and freely exercised that right in practice through periodic, free, and fair elections held on the basis of universal suffrage. The lower chamber of Parliament, the House of Commons--the center of legislative power--is

elected in periodic, multiparty elections. The upper chamber, the House of Lords, has the power to revise and delay but not block the implementation of laws; it is made up of approximately 500 appointed life peers, 92 hereditary peers and 26 senior clergy of the established Church of England.

The Government is formed on the basis of a majority of seats in the House of Commons, which are contested in elections held at least every 5 years. Participation in the political process is open to all persons and parties. All citizens 18 years of age and older may vote. Institutions such as the Northern Ireland Assembly, the Scottish Parliament, and the Welsh Assembly have control over matters of regional importance, such as education, health, and some economic matters. Foreign affairs and defense continued to be the responsibility of the central government. As in the rest of the country, Northern Ireland has city and district councils but with fewer powers. England and Wales also have county councils.

On October 14, the Northern Ireland Assembly and Executive were suspended. The suspension came in the wake of October 4 raids on homes belonging to Sinn Fein members and a Sinn Fein office at the seat of Northern Ireland's devolved government, the Parliament Building. The raids were prompted by an alleged Sinn Fein/IRA spy operation inside the Northern Ireland Office in Belfast. The Government temporarily re-instituted direct rule headed by the Secretary of State for Northern Ireland and four ministers. The Government reiterated its commitment to the Good Friday Agreement and continued to work towards its implementation, including reestablishment of the Assembly and Executive in Northern Ireland.

The small number of remaining overseas British territories have an aggregate population of approximately 190,000. They enjoy varying degrees of self-government based on the British model, with appointed governors.

Women did not face any legal constraints on voting or holding office. Women constituted 18 percent of the members of the House of Commons and approximately 15 percent of those in the House of Lords. In January the Government's Women and Equality Unit began a campaign, including a regional seminar series, to increase the number of women holding public appointments at the national level. Twelve members of Parliament have identified themselves as members of minority ethnic groups.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A wide variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were cooperative and responsive to their views.

Proceedings under the Human Rights Act--which incorporated the provisions of the European Convention on Human Rights into domestic law--may be brought only by victims of a breach of convention rights by a public authority. The Home Office has a human rights unit with responsibility for human rights policy and legislation. NGOs have criticized the Government for its failure to create a government-wide Human Rights Commission. In Northern Ireland, a Human Rights Commission was established as an outcome of the peace process to provide legal advice and assistance to citizens. The Commission was consulting on a bill of rights specific to Northern Ireland, pursuant to the Good Friday Agreement, which also mandated wide-ranging reforms in policing and criminal justice. Recommendations on a bill are scheduled for 2003. Two members of the Commission resigned in September, citing the Government's failure to provide adequate resources to the Commission. While cases still

may be taken to the European Court of Human Rights, all domestic remedies under the Human Rights Act must be exhausted first.

A number of international human rights NGOs, including AI and Human Rights Watch, were based in the country. The Government cooperated fully with international inquiries into alleged violations of human rights.

Section 5 Discrimination Based on Race, Sex, Disability, Language, or Social Status

The 1976 Race Relations Act prohibits incitement to racial hatred and discrimination on the basis of race, color, nationality, or national or ethnic origin; some groups continued to experience official and societal discrimination.

The Human Rights Act prohibits discrimination on the basis of religion by public authorities. In Northern Ireland the Fair Employment Act specifically banned employment discrimination on the grounds of religious beliefs. The 1998 Fair Employment and Treatment Order extended the prohibition on discrimination to the provision of goods, facilities, services, and premises. The Northern Ireland Equality Commission oversees antidiscrimination policy. Section 75 of the Northern Ireland Act 1998 places all public authorities under a duty to promote equality of opportunity.

Women

Violence against women continued to be a problem. According to Home Office statistics, from May 2001 to April 2002, there were 9,743 rapes and 21,765 indecent assaults. The report stated that sexual offenses were significantly underreported.

Criminal penalties for rape, including spousal rape, sexual assault, and domestic violence are substantial, and these laws were enforced strictly; however, conviction rates for rape tended to be lower than for other crimes. The law

provides for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for women who are victims of violence. The Government provided shelters, counseling, and other assistance for battery or rape and offered free legal aid to battered women who were economically reliant on their abusers. The law prohibits defendants themselves from conducting cross-examinations of complainants in rape and sexual offence trials. In 2001 the Government placed restrictions on the admissibility into evidence of a complainant's previous sexual history. Female genital mutilation is illegal but was practiced by immigrant populations from countries in which the practice is common. The extent to which the procedure was used is unknown, but the Government continued to work to eradicate it.

Trafficking in women remained a problem (see Section 6.f.).

No law specifically prohibits sexual harassment; criminal action for sexual harassment cases must be prosecuted under assault legislation. Women's groups have complained that civil suits concerning sexual harassment and discrimination on the basis of gender at times take up to 3♦ years to appear before an industrial tribunal.

The law provides for equal opportunity between the sexes, but women experienced some discrimination in practice. The law prohibits both direct and indirect discrimination in training, housing, and the provision of goods and services, as well as in employment. Women have equal rights regarding property and divorce. The Government's Equal Opportunities Commission supports persons who bring discrimination cases before industrial tribunals and courts and produces guidelines for employers. The Government's Women and Equality Unit reported that women's hourly earnings are lower than men's, \$12.70 (8.21 pounds) and \$16.45 (10.63 pounds), respectively. In

the Government, women's issues were represented at the cabinet level by the Minister for Women, who heads up the Women and Equality Unit, which engaged in dialog with women and advised the Government but had no authority for direct action.

Children

The Government was strongly committed to children's rights and welfare; it amply funded a system of public education and medical care. The Government provided free, compulsory education until age 16 and further free education until age 18 if a student so desires.

While there was no societal pattern of abuse directed against children, there were indications that child abuse was a problem; however, there was a lack of reliable data.

Children have been trafficked into the country for sexual exploitation and forced labor (see Section 6.f.).

Concern and publicity surrounding pedophiles continued to grow. As part of a government drive to protect children from child abusers, previously secret registers of pedophiles were available to any employer who runs an organization where persons under age 18 could be at risk (schools, children's homes, or voluntary organizations). In addition, suspected child abusers and convicted pedophiles were banned from working with children. Childcare organizations must consult a list before offering anyone a job, paid or otherwise, and it was illegal for them to hire anyone named on it. On October 2, the Home Office announced new measures to strengthen the Sex Offenders' Register to give courts expanded powers to force those convicted of relevant sex offences outside the UK to register as offenders in Britain. All sex offenders on the register will be made to attend a police station in person every 12 months to confirm their whereabouts. The Government's Task Force on Child Protection on the Internet organized educational campaigns, developed proposals on stiffer penalties against pedophile activities,

developed models and good practices for protection, and worked on a G8 strategy to combat the problem.

A March joint report, "Safeguarding Children," headed by the Chief Inspectors of Social Services concluded that in the vast majority of cases, government agencies protected children from the risks of further harm, with good working relationships between agencies at all levels. However, the report noted concerns that the services were under pressure for resources and management on some levels and made numerous recommendations for further safeguards. The NGOs Refugee Council and Save the Children claimed in an August 2001 report that many social services agencies provided inadequate care to unaccompanied minors seeking asylum.

Various laws covering England and Wales stipulate that children have the right to apply for court orders, to give or withhold consent for medical treatment (for those capable of making an informed decision), to make complaints to the relevant local authority, to have their ethnic, linguistic, and religious background considered in decisions affecting them, to have reasonable contact with their families (usually applied in a circumstance where there was abuse), and in general to be consulted regarding their desires. In order to reduce the intimidation that young suspects may feel when tried in an adult court, there is a ban on robes and wigs and uniformed security officers in any courtroom where defendants under age 18 are tried on serious criminal charges.

Under the 2000 Prevention of Terrorism Act, the police may arrest and detain children as young as 10 years of age for up to 7 days, although no children were detained under the act during the year.

The law bans corporal punishment in state schools as well as private schools and nursery schools. Child welfare groups have called for all corporal punishment of children to be outlawed.

Persons with Disabilities

The Disability Discrimination Act (DDA) prohibits discrimination against persons with disabilities in the provision of access to public facilities by employers of more than 15 workers, service providers (apart from those providing education or running transport vehicles), and anyone selling or renting property. In addition, all businesses are required to accommodate customers with disabilities. Adaptations must be "reasonable," bearing in mind the circumstances and size of the business. The Education Act requires local education authorities to make provision for the special educational needs of children with disabilities.

The Government responded to a 2001 disability rights task force report by announcing new measures to cover nearly 7 million jobs previously excluded from the DDA, such as police, firefighters, and prison officers. The Special Educational Needs and Disability Act enhances civil rights for persons with disabilities in education.

The DRC provided a hotline for persons with disabilities and employers, legal advice and support for individuals, and policy advice to the Government. The DRC also has the power to conduct formal investigations, arrange conciliation, require persons to adopt action plans to ensure compliance with the law, and apply for injunctions to prevent acts of unlawful discrimination.

Government regulations require that all new buildings meet the access requirements of all persons with impaired mobility and that all taxis be wheelchair accessible; similar regulations were in force for sensory-impaired persons. Access to many buildings, particularly older buildings, including transportation centers, remained inadequate. New measures introduced in March require all businesses to make "reasonable" modifications for persons with disabilities by 2004.

National/Racial/Ethnic Minorities

Despite legal prohibitions against race discrimination, persons of African and Afro-Caribbean, South Asian, or Middle Eastern origin, and Travellers--itinerant populations consisting of Roma, Irish, and other ethnic groups estimated to number 100,000 persons--faced occasional acts of societal violence and some discrimination.

Incitement to racial hatred is a criminal offense punishable by a maximum of 2 years' imprisonment. The Government strictly enforced the laws and regulations in this area.

On December 25, a group of between 15 to 20 youths attacked, kicked and punched 3 Asian men in Hounslow. Two men were charged with racially aggravated assault and violent disorder following an attack on a Muslim man outside a mosque in Llanelli, Wales on June 2. Four people were charged with racially aggravated public order offences during a disturbance in Preston on April 21.

A complaint against the police which arose out of the inquest into the 1997 death of a young Asian, Ricky Reel, found drowned in the Thames River in what his family believes was a racial attack, has been supervised by the Police Complaints Authority and continued at year's end.

On May 31, the CRE's code of practice placing a statutory duty on public authorities to promote race equality took effect. On February 15, the Scottish Executive presented to Parliament legislation setting new racial equality standards in the public sector.

A Home Office 2001 report showed that, in respect to race equality employment targets, non-prison services and the National Probation Service had exceeded their targets set for 2009 and that the Prison Service and the Police had made significant gains as well.

In July the NGO Liberty took the Home Secretary to the High Court to seek a judicial review on behalf of the European Roma Rights Center and six anonymous Czech

Roma persons who were prescreened at the airport in Prague by UK immigration officials in July 2001. On October 10, the High Court ruled that their treatment had been lawful.

Travellers (approximately 1.6 percent of the total population) have experienced marginalization, educational discrimination, and police and societal harassment greater than that of the settled population, according to human rights groups. In June the Scottish Parliament published a report citing evidence of institutional discrimination, racism, and harassment of Travellers in Scotland. The Race Relations (Northern Ireland) Order provided specific legal protection to minority ethnic groups in Northern Ireland, including the Traveller community. On July 10, the Traveller Law Reform Bill was adopted and read in Parliament. The Bill is designed to remove discrimination between the laws that apply to Travelling and non-Travelling people, creates a Gypsy and Traveller Accommodation Commission and requires local authorities to facilitate site provision. The Government also instituted the Gypsy Sites Refurbishment Grant of \$10.8 million (7 million pounds) to refurbish the existing network of local authority Gypsy sites.

The government-appointed but independent CRE provides guidelines on anti-discrimination practices, supports persons taking court action, and may initiate its own court actions. After investigating a complaint, the CRE may issue a notice requiring that the discrimination be stopped. The CRE monitors the response to such notices for 5 years.

Section 6 Worker Rights

a. The Right of Association

The law provides for the right to organize and protects the rights of union members. Workers have the right to form and join unions, and workers exercised this right in practice. Just under 30 percent of the workforce was unionized. Coverage was most widespread in the public

sector, where 60 percent of workers were organized. In contrast, 19 percent of private sector workers were unionized. Unionization of the work force is prohibited only in the armed forces, public sector security services, and police force. Unions, although often affiliated with political parties, were free of government control. The Employment Relations Act affords protection to union organizing efforts and sets minimum employment standards. Workers are protected by law against dismissal or other retaliation for campaigning or voting for or against recognition. The law also prohibits the compilation of lists of union members and labor activists for use by employers and employment agencies.

Union members are protected by law against "being subject to any detriment" due to union activity or membership, and this was generally observed in practice. Contract and part-time workers are covered by the law, closing loopholes that previously allowed some employers to evade labor regulations.

Unions may join federations and participate freely in international organizations. The largest federation was the Trades Union Congress. Former British union leaders frequently occupy leadership positions in international labor organizations.

b. The Right to Organize and Bargain Collectively

Collective bargaining is long standing and covers approximately 30 percent of the work force. Under the Employment Relations Act, labor-management contracts are enforceable legally.

Under the Act, unions may file a request for recognition, identifying the proposed bargaining unit to the Central Arbitration Committee (CAC), a tripartite group that includes representatives from government, business, and labor. The Act covers employers with more than 20 workers and encompasses an estimated two-thirds of all workplaces. Once the CAC determines the appropriate

bargaining unit, it assesses whether a union is likely to have majority support. If union members already make up a majority of the bargaining unit, the CAC may issue a declaration that the union is recognized for collective bargaining without a ballot. In those instances where the CAC orders a ballot (typically, when the majority of bargaining unit employees are not already union members), the employer must cooperate by providing a list of names and giving the union access to the workplace to campaign. Unions win recognition when a majority of those voting agree, including at least 40 percent of those in the bargaining unit.

Although the law encourages voluntary agreements between employers and unions, the CAC may, if necessary, impose a legally binding procedure for bargaining about pay, hours, and holidays.

The Employment Relations Act affirms the statutory right to strike. The law prohibits retaliation by strikers. Dismissed strikers were able to claim unfair dismissal if fired within 8 weeks of when they first undertook a legal strike or "trade dispute." The law defines a "trade dispute" in great detail; in summary, a strike must be confined to workers and their own employers ("secondary boycotts" are illegal), the dispute must be wholly or mainly about employment-related matters (e.g., pay and conditions), workers must be properly and secretly balloted before striking (with notice to the employer), and mass picketing is prohibited.

There were no export processing zones.

c. Prohibition of Forced or Bonded Labor

The Government prohibits forced or bonded labor, including by children, and there were no reports that such practices occurred.

d. Status of Child Labor Practices and Minimum Age for Employment

Children under age 16 are not permitted to work in an industrial enterprise except as part of an educational course.

e. Acceptable Conditions of Work

In the second phase of a 2-year deal, the adult minimum wage rose from \$6.35 to \$6.50 (4.20 British pounds) per hour as of October 1. When introduced in 1999, the new pay thresholds were expected to benefit some 1.5 million workers directly; however, according to Government figures from the spring, 320,000 jobs were held by persons age 18 and over that paid less than the national minimum wage. Government departments have aggressively monitored employer efforts to bring pay practices into compliance.

The national minimum wage did not provide a decent standard of living for a worker and family; however, other benefits of the welfare state filled the gap. Of nearly 28 million workers, approximately 6 million (21 percent) benefit from a social insurance scheme, in addition to receiving free universal access to the National Health Service. The working families' tax credit and disabled person's tax credit were designed to ensure a working family a weekly income of \$319 (214 pounds), which constituted a living wage. No family earning less than \$380 (255 pounds) per week is obligated to pay income tax. The Government also provided a minimum income guarantee for low-income pensioners, which increased the basic state pension that all retired employees receive. Effective in April 2001, the Government increased the threshold of total personal assets to allow more low-income pensioners to take advantage of this benefit.

Domestic legislation limits the workweek to 48 hours, in compliance with EU standards. The maximum compensation level for unfair dismissal claims is \$80,000 (50,000 pounds). Parental leave provisions were available for employees with more than a year's continuous service.

The 1974 Health and Safety at Work Act stipulates that the health and safety of employees not be placed at risk, and in practice the Act is updated regularly to reflect new safety issues. The Health and Safety Executive effectively enforced regulations on these matters and may initiate criminal proceedings in appropriate cases. Workers' representatives actively monitored enforcement of the act. Workers may remove themselves from dangerous work conditions without jeopardy to their continued employment.

Foreign workers are protected by the same labor laws and have the same rights as other workers, and foreign workers exercised these rights in practice. Some unions have outreach and support and counseling programs specifically targeting foreign workers in the country who may be at higher risk of exploitation.

f. Trafficking in Persons

No laws specifically criminalize trafficking in persons, although a range of laws were used to prosecute traffickers. The trafficking of persons remained a persistent problem. The country is a destination for trafficking in women and girls for prostitution and in men and women for manual labor. While the Government estimated that 1,400 women and girls were trafficked each year for prostitution, there was no reliable data on the number of persons trafficked as laborers.

The Government actively investigated and prosecuted traffickers under a range of relevant laws, including unlawful imprisonment and facilitating illegal entry, that provide for penalties of up to 10 years in prison. The police successfully prosecuted traffickers under laws such as those against procuring and living off of immoral earnings. For example, numerous traffickers were convicted of the charge of "causing prostitution," which carries a 2-year prison sentence.

All intelligence and law enforcement agencies participated

in Project Flex, a formal inter-agency mechanism charged with combating trafficking. The Government participated in multinational working groups on the prevention of trafficking. The Metropolitan Police have a special unit of 14 officers to investigate sexual exploitation and trafficking. The Government sponsored education campaigns overseas, particularly in Central Europe and Southeast Asia, to discourage trafficking. The Foreign Office has posted immigration officials at overseas points of transit for traffickers to identify trafficking cases before they reach the United Kingdom.

Female trafficking victims were mainly from the Balkans and other Central European countries. Women and girls were also trafficked from South America, West Africa (particularly Nigeria), and Southeast Asia (Thailand and Vietnam).

According to the National Criminal Intelligence Service, trafficked laborers came from countries including India, Pakistan, Bangladesh, Sri Lanka, the former Yugoslavia, Romania, China, Congo, Angola, Colombia, and Ecuador. Laborers were trafficked actively by China-based criminal gangs, "snakeheads," and also by deception. In general migrants paid high fees to enter the country; however, those who could not pay were forced into servitude, often in London sweatshops run by the gangs. Some also worked in agriculture. Many victims were unwilling to come forward, due to fears of retribution from traffickers, fear of being deported or abused by authorities, or because they could not speak English well enough.

Most female victims were lured into the country by deception. The victims often agreed to pay off the balance by working in the sex industry; however, upon arriving, they were required to perform sexual services they had not agreed to, their documents were confiscated, they were forced to work a longer time than anticipated, and they were deceived into not seeking help. In addition, there was

evidence that a small number of victims were forcibly abducted and brought into the country against their will.

The Government did not deport victims of trafficking; the police and the IND cooperated on assisting trafficking victims and provided temporary residency status to victims. In addition, both agencies provided legal, medical, and psychological services. Victims were not prosecuted for other crimes.

The Government worked closely with and provided funding for NGOs and other relevant organizations that fight trafficking. The Child and Woman Abuse Studies Unit at the University of North London has headed efforts to intensify public discussion on prostitution and trafficking. The NGO Kayalaan was effective in assisting trafficking victims. Another NGO, Change, worked on a project to map out government organizations and NGOs that combat trafficking in women globally. A third NGO, Womankind Worldwide, worked with overseas partners on trafficking.